

Tentative Rulings for September 22, 2026 Department 1

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 638 4172**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2105337	SANCHEZ vs FELLOWSHIP WAREHOUSING AND LOGISTICS, LLC	MOTION TO BE RELIEVED AS COUNSEL FOR FELLOWSHIP WAREHOUSING AND LOGISTICS, LLC

Tentative Ruling: Appearances requested.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2400722	MADRIGAL vs DPEP, INC.	HEARING ON FINAL APPROVAL

Tentative Ruling: Appearances requested to discuss:

1. Extended deadline for 18 class members—did any of them request exclusion or object? Add to proposed order/judgment the names of the 5 persons who opted out. (¶ 6) Need to reconcile the no requests for exclusion in ¶ 16.
2. Add to proposed order/judgment that administrator will send a reminder postcard to anyone who did not cash their check within 60 days of mailing.
3. Add to proposed order/judgment that if any class members are current employees of the defendant, if the distribution mailed is returned as undeliverable and the administrator is unable to locate a valid mailing address, then the administrator shall arrange with the defendant to have those distributions delivered to the employees at their place of employment.
4. Need date for review of administrator's report (¶ 23).

3.

CASE #	CASE NAME	HEARING NAME
CVRI2601434	HENDRICKS vs VAN DAELE DEVELOPMENT CORPORATION	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Appearances requested to discuss the unconscionability defense.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2604182	HASTINGS vs MIRAGE ENDOSCOPY CENTER, LLC	MOTION TO CONSOLIDATE

Tentative Ruling: Grant; no opposition.

5.

CASE #	CASE NAME	HEARING NAME
RIC2002687	BOREL vs SOUTHERN CALIFORNIA GAS COMPANY	MOTION TO TAX COSTS (X3)

Tentative Ruling:

In this consolidated action, various plaintiffs sued multiple defendants, including Southern California Gas Company. On April 21, 32026, the court denied SCGC's motion for summary judgment and denied summary adjudication of the negligence cause of action. The Court granted summary adjudication as to property damage claims of non-owner plaintiffs, as to the negligent infliction of emotional distress cause of action as to those plaintiffs who did not suffer bodily injuries, and as to the public nuisance cause of action for those plaintiffs who did not establish a "special injury" distinct from that suffered by the general public. Judgement was entered on April 24, 2026, against plaintiffs Karen McKinney, Alejandro Melgoza, Sr., Adriana Duran-Melgoza, Elizabeth Melgoza, Kaiden Villanueva, Cathlyn Villanueva, and Deren Villanueva. SCGC filed a memorandum of costs on May 8, 2026, claiming \$65,250.46. The memorandum seeks: (1) filing and motion fees of \$2,261.20; (2) deposition costs of \$53,387.41; (3) court reporter fees of \$1,275.00; (4) subpoena costs of \$4,411.85; and (5) mediation costs of \$3,915.00.

The parties against whom costs are claimed filed a motion to tax on June 9, 2026, just less than two weeks after the deadline. They seek relief under *California Code of Civil Procedure* § 473(b), arguing that there was an internal calendaring error and that this constitutes excusable neglect. They move to strike or to tax costs on several grounds. First, they argue that SCGC is not a prevailing party because it is still a defendant in the case which is set for trial in a few months. Second, they argue that the costs were for defending the entire action and would have been incurred regardless of the causes of action that were summarily adjudicated. Further, they argue that even if some costs are recoverable, SCGC has not adequately supported the costs it claims and that some are non-recoverable, such as deposition costs for percipient witnesses, plaintiffs in related consolidated cases, an expert, who remains designated for trial, the McKinney plaintiffs themselves as percipient witnesses for other plaintiffs' alleged damages, the cost of video recording deposition testimony, which was unnecessary, subpoena costs, and mediation costs.

SCGC argues that the moving plaintiffs failed to show that the failure to timely file the motion was the result of excusable neglect and that relief is unwarranted because a reasonably prudent attorney would not have missed the deadline by nearly two weeks. On the merits, SCGC argues it is a prevailing party as to the moving parties regardless of the remaining claims of other plaintiffs, that overlap with related, consolidated cases does not defeat recovery of costs, and that all of the challenged costs are reasonable, necessary, and properly documented.

Legal Standard. A prevailing party is entitled as a matter of right to recover costs unless a statute provides otherwise. *Cal Civ. Proc. Code* § 1032(b). If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonably necessary. *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266. When a party disputes specific costs claimed in a memorandum of costs, the trial court has the obligation to review the supporting documents and the basis of the party's challenge to each specific item of costs. *Acosta v. SI Corp.* (2005) 129 Cal.App.4th 1370, 1380. Once cost items are objected to, it is incumbent upon the party claiming costs to provide sufficient detail of the expenditures and an explanation of the need and reason for the costs. *Jones, supra*, 63 Cal.App.4th at 1266. All costs awarded, even costs specifically allowed under *California Code of Civil Procedure* § 1033.5(a), must be both reasonably necessary and reasonable in amount. *El Dorado Meat Co. v. Yosemite Meat & Locker Serv., Inc.* (2007) 150 Cal.App.4th 612, 616. Otherwise, they are not recoverable. *Id.*

Relief for the Untimely Filing of the Motion. Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum, plus an additional five (5) days if served by mail or two (2) days if served electronically. *Cal. R. of Ct.*, Rule 3.1700(b)(1). "After the time has passed for a motion to strike or tax costs or for determination of that motion, the clerk must immediately enter the costs on the judgment." *Id.*, Rule 3.1700(b)(4). A party's failure to timely file a motion to tax costs "is deemed to have assented to the correctness and lawfulness of the items as claimed in the verified memorandum of costs as filed, the total of which, upon being entered in the judgment by the clerk in accordance with his duty, is of the same force and effect as any other part of the judgment." *Davis Lumber Co. v. Hubbell* (1955) 137 Cal.App.2d 148, 150.

Here, the statutory deadline to file a motion to strike or tax costs was May 28, 2026.¹ (Harper Decl. ¶ 5.) The motion was filed on June 9, 2026, nearly two weeks late. Moving parties seek discretionary relief under section 473(b) for mistake, inadvertence, or excusable neglect. The test is whether a reasonably prudent person under the same or similar circumstances might have made the same error. The moving parties attribute the mistake to a new legal assistant failing to calendar the deadline. The error was

¹ The May 28, 2026, deadline reflects the 15-day period under Rule 3.1700(b)(1), extended two court days for electronic service under *California Code of Civil Procedure* § 1010.6(a)(3)(B), with the intervening weekend and Memorial Day holiday rolled forward under *California Code of Civil Procedure* § 12a. Moving Parties' declaration identifies the deadline as May 27, 2026, (Van der Zee Decl. ¶ 4), possibly reflecting a different order of applying the section 12a extension. The one-day discrepancy is immaterial because the motion was untimely under either date.

corrected the day after discovery, but as noted, the motion was filed nearly two weeks after the deadline. Although this is more than a day or even a few days, the Court finds that moving parties have shown that the untimely filing was the result of excusable neglect.

The test is whether a reasonably prudent attorney might have made the same error under similar circumstances. *Generale Bank Nederland, N.V. v. Eyes of the Beholder, Ltd.* (1998) 61 Cal.App.4th 1384, 1399. A staff member's misfiling of papers or failure to enter an appearance date on the calendar can be excusable neglect. "Where an attorney states that he was unaware of his duty to appear or answer because his employees misplaced papers or misinformed him as to the relevant date relief is routinely granted." *Elston v. City of Turlock* (1985) 38 Cal.3d 227, 234. Unless inexcusable neglect is clear, the policy favoring a decision on the merits prevails, particularly where relief will not seriously prejudice the opposing party. *Id.*

It cannot be said that having to respond to the merits of the motion to tax is prejudicial to SCGC and no other potential prejudice from the short delay in filing the motion has been identified.

SCGC is the Prevailing Party. SCGC qualifies as the prevailing party, notwithstanding that it still must defend claims from other plaintiffs. *California Code of Civil Procedure* § 1032(a)(4) defines the prevailing party as including: "(2) a defendant in whose favor a dismissal is entered," (3) "a defendant where neither plaintiff nor defendant obtains any relief," and (4) "a defendant as against those plaintiffs who do not recover any relief against that defendant." Because judgment was entered in favor of SCGC and against the moving parties, resolving all of their claims against SCGC, it is the prevailing party as against them.

Under these circumstances, the defendant has "an absolute right to recover these costs" from plaintiffs who were dismissed on summary judgment, even where other plaintiffs in the same complaint were not dismissed. *Andersen v. Pacific Bell* (1988) 204 Cal.App.3d 277, 286. A defendant's "statutory right as prevailing party to recover its own costs from the dismissed plaintiffs is not dependent on any hypothetical, future right the remaining plaintiffs might have to recover their different costs." *Id.* at 286–87.

In a consolidated action such as this, the prevailing party is entitled to recover costs without any apportionment or reduction due to the consolidated nature of the action, as long as the prevailing party has not already recovered the same costs from another party. *Rappenecker v. Sea-Land Serv., Inc.* (1979) 93 Cal.App.3d 256, 264–65. There is no indication that SCGC has already recovered any of the costs included on its memorandum of costs.

Specific Items of Costs. Filing and motion fees are recoverable, even though they were incurred in litigating against all plaintiffs, not just those against whom judgment has been entered. As noted, SCGC is the prevailing party against moving parties and the costs are recoverable even if they may have benefited its defense against other plaintiffs. Therefore, the motion to tax the filing and motion fees is denied.

Deposition costs are recoverable. The memorandum of costs includes the expense of taking 10 depositions of percipient witnesses, four experts, and 14 plaintiffs, including seven of the moving parties. Moving parties argue that the depositions were taking in the consolidated cases, concern the same incident, same investigation, and same factual and expert issues common to all of the plaintiffs in all of the consolidated cases. The costs would have been incurred regardless of the summary adjudication SCGC obtained.

That SCGC would have had to incur the same deposition expense—assuming that it is true—does not mean that it was not “reasonably necessary” to defend against the moving parties’ claims that were summarily adjudicated. Indeed, the “you would have had to take the depositions anyway” reenforces that they were important and were reasonably necessary to defend against moving parties’ claims.

The deposition costs appear to be at usual market rates and all of the parties, including the moving parties, appear to have agreed to use the reporting agency and to consent to its rates. Invoices are attached to the Harper Declaration.

As to the cost of recording the deposition testimony on video, in the third decade of the 21st century, that is a reasonable practice and the costs are not unreasonable. Further, recovery of deposition costs does not depend on whether the deponent ultimately testifies at trial.” *Chaaban v. Wet Seal, Inc.* (2012) 203 Cal.App.4th 49, 57.

Therefore, the motion to strike the deposition costs is denied.

Court reporter fees are expressly allowed by statute. *Cal. Civ. Proc. Code* § 1033.5(a)(11). *Chaaban, supra*, 203 Cal.App.4th at 59 (court reporter fees recoverable even if no transcript is ordered because “reporter fees are a distinct expense the parties must pay regardless of whether transcripts are ordered”). SCGC seeks only the reporter fees incurred for the hearings on February 16, 2023, (status conference) and December 11, 2025 (hearing on motion for summary adjudication). Reporting of the dispositive motion hearing was obviously appropriate as was reporting of a status conference concerning management of this complex case. There can be no question that the fees were reasonable and necessary; as discussed above, that SCGC might have had to incur them in any event does not make them taxable. The rate charged was reasonable and customary and again invoices are included in the moving papers.

The motion to tax court reporter fees is denied.

Subpoenas for records. SCGC seeks to recover the costs of subpoenas for records. The costs are recoverable either under *California Code of Civil Procedure* § 1033.5(a)(3) as deposition costs (*Naser v. Lakeridge Athletic Club* (2014) 227 Cal.App.4th 571, 583–585) or under § 1033.5(c)(2-4) as reasonably necessary to the conduct of the litigation. *Ladas v. California State Automobile Assn.* (1993) 19 Cal.App.4th 761, 774.

The specific costs are for records for Karen McKinney, Cathlyn Villanueva, Adriana Duran-Melgoza, and Lastacia Neat. Moving parties argue that these costs are

“investigation expenses” barred by § 1033.5(b)(2) and that some of the plaintiffs have further claims.

As noted, the costs are recoverable either under subsection (a)(3) or (c)(2-4). *Naser* rejected the “investigation” argument. 227 Cal.App.4th at 576-78. Further, recovery after summary judgment does not limit the recover of costs. “[A]lthough the scope of the summary judgment motion [may be] more narrow than the potential issues that might arise at trial, [a defendant is] entitled to conduct discovery necessary to prepare for trial and to recover those costs after prevailing in the action.” *Id.* at 578.

Subpoenaing records was the only way to obtain the information about moving parties’ severe emotional distress claims. The costs are reasonable and supporting invoices provided.

The motion to tax the cost of subpoenaing the records is denied.

Mediation costs are not listed as allowable under § 1033.5(a) nor are they listed as prohibited under § 1033.5(b). The court has discretion to award them as reasonable and necessary for the conduct of the litigation. *Ladas, supra*, 19 Cal.App.4th at 774.

SCG argues that at the time of mediation, the case involved 19 plaintiffs and three active defendants, all of whom had pending cross-complaints and that the mediation was an attempt to resolve some or all of the claims and to conserve the resources of the parties and the court. While amount of the costs incurred and sought by the memorandum is reasonable, the Court finds that, under the circumstances of this case, just as the benefits of mediation were shared by all parties, the costs should be shared by all parties. It is not appropriate to award the mediation expenses against moving parties and the motion to tax the mediation costs (\$3,915.00) is granted.